

26STCV18786 26STCV18786

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Case Number: 26STCV18786 Hearing Date: July 14, 2026 Dept: 836

ORDER TO SHOW CAUSE

RE: PRELIMINARY INJUNCTION

Date: 7/14/26

(1:30 PM)

Case: Baron Bodnar, et al. v. Golden Pocket Financial Inc., et al.

(26STCV18786)

TENTATIVE RULING:

Plaintiffs Baron Bodnar and Cannabaron Diversified LLC's request for a preliminary injunction is GRANTED.

Plaintiffs' requests for judicial notice of Exhibits 1 through 4, consisting of court filings in separate matters, is GRANTED per Evidence Code § 452(d). Plaintiffs' requests for judicial notice of Exhibits 5 through 8, consisting of various recorded property documents, are GRANTED per Evidence Code § 452(c) and (h). (Fontenot v. Wells Fargo Bank, N.A. (2011) 198 Cal.App.4th 256, 264-65.)

I. BACKGROUND

As represented by plaintiffs, plaintiff Baron Bodnar was introduced in 2018 to defendant James C. Gilmer, who is the managing member of defendant GHWL, LLC. (Bodnar Decl. ¶ 4.) Defendant Frank J. Perez is also a principal of GHWL, LLC. (Bodnar Decl. ¶ 4; Jackson Decl. ¶ 3.) Bodnar is

the owner of the real property located at 11166 Burbank Blvd, North Hollywood, California 91601 ("Bodnar Property"). (Bodnar Decl. ¶ 2.) Bodnar previously owned the Bodnar Property in joint tenancy with his late mother, Mary Louisa Bodnar. (Ibid.)

On May 6, 2018, defendant James C. Gilmer sent an email to plaintiff Baron Bodnar, soliciting his investment in a cannabis business venture. (Bodnar Decl. ¶¶ 4-5 & Ex. A [5/6/18 Email].) The email indicated that the joint venture related to real properties located at 237, 241, and 245 East Hueneme Road in Port Hueneme, California. (Ibid.) The email further indicated that, in connection with the purchase of the 237 property, "an additional property/guarantor for cross-collateralizing" was needed and that "the investor [would] serve[] as a guarantor and a lien will be placed on the property to [partially] secure the loan." (Ibid.) The email further claimed that there was potential financing from "Social Equity Lenders" in the amount of \$1,160,000, but plaintiffs later discovered that the only lender was defendant Golden Pocket Financial Inc. ("Golden Pocket"), which is a hard money lender. (Bodnar Decl. ¶¶ 5-6.)

An "Executive Summary" for the proposed business venture was attached to Gilmer's email, and it represented that the projected revenue streams between 2018 and 2020 would exceed \$9.5 million, resulting in profits of \$850,000 per year. (Bodnar Decl. ¶ 5 & Ex. B.) It also represented that the business venture had an agreement with an experienced cannabis dispensary operator. (Bodnar Decl. ¶ 7.) Defendant Gilmer represented that he had close connections with the City of Port Hueneme to ensure that the required permits would be secured. (Id.) To further induce Bodnar, defendants GHWL, LLC, Gilmer, and Frank J. Perez promised Bodnar that any encumbrance against the Bodnar Property would be limited, and they ultimately agreed for such limit to be \$300,000. (Bodnar Decl. ¶¶ 8-9 & Ex. C [5/31/18 Text Message], Ex. D [6/5/18 Draft Lender's Instructions].) Bodnar was further told that the debt would be non-recourse and that the encumbrance on the Bodnar Property would be removed by July 2020. (Bodnar Decl. ¶ 10.) Bodnar contends that he relied on these representations before participating in the business venture. (Bodnar Decl. ¶¶ 10, 17.)

On or around June 5, 2018, a promissory note ("Note") was executed by the parties involved in the business venture, but Bodnar attests that he does not recall signing the Note. (Bodnar Decl. ¶ 12 & Ex. F.) By contrast, defendant Golden Pocket possesses a copy of the fully executed Note,

which contains Bodnar's signature. (Huang Decl. ¶ 7 & Ex. A.) Bodnar represents that, on June 18, 2018, the parties executed an Addendum to the Note that capped the total liability against the Bodnar Property at \$300,000. (Bodnar Decl. ¶¶ 12-13 & Exs. G-I.) He further represents that Golden Pocket was willing to accept every term in the Addendum, except for a liquidated damages clause, and that Bodnar communicated that his participation was conditioned on the \$300,000 limit. (Bodnar Decl. ¶¶ 14-15 & Exs. J-L.) Golden Pocket denies ever agreeing to such a limitation and claims to have rejected the Addendum. (Huang Decl. ¶¶ 9-12 & Ex. C.)

By June 19, 2018, plaintiffs entered into a "Letter Agreement re: Cannabis Projects" with defendants GHWL, LLC, James C. Gilmer, and Perez, limiting the liability against the Bodnar Property to \$300,000, and, in exchange, plaintiff Cannabaron Diversified LLC ("Cannabaron") would receive a 23% ownership interest in the business owning the venture's real estate and a 17% interest in the businesses operating there. (Bodnar Decl. ¶ 11 & Ex. E.) Cannabaron was incorporated by Bodnar to participate in the business venture. (Bodnar Decl. ¶ 3.)

Thereafter, Bodnar executed a Deed of Trust, which was recorded on June 25, 2018 by Golden Pocket. (RJN Ex. 5.) The Deed of Trust indicates the lien against the Bodnar Property is for the full amount of the Note, i.e., \$1,150,000. Bodnar represents that it was not his understanding that his property would be encumbered in that manner. (Bodnar Decl. ¶ 18.) Plaintiffs also present a title report for the Bodnar Property, which indicates that Golden Pocket only recorded a lien against the property in the amount of \$349,375 on June 25, 2018. (Fowler Decl. ¶ 15 & Ex. C [Title Report].) Bodnar maintains that he was denied access to the loan documents. (Bodnar Decl. ¶ 16 & Ex. M [6/18/25 Email].) Additionally, Bodnar indicates that the Borrower's Declaration falsely stated that the purpose of the transaction was for the purchase of the Bodnar Property. (Bodnar Decl. ¶ 19 & Ex. N [Borrower's Declaration].)

The GHWL Parties defaulted on the Note soon after closing on the loan, and they did not take measures to cure the default. (Bodnar Decl. ¶ 20.) On December 17, 2019, Golden Pocket served a notice of default on Bodnar but later indicated that the notice had been served in error. (Bodnar Decl. ¶ 21; Fowler Decl. ¶¶ 4-14 & Exs. A-B.) In communications with Golden Pocket's former counsel about the notice of default, Bodnar's counsel stressed that the limit of liability on the Bodnar Property was \$300,000, which was not contested in

those communications.

Years later, on December 4, 2025, Golden Pocket foreclosed on the 237 East Hueneme Road Property. (Bodnar Decl. ¶ 22; RJN Ex. 6.) On December 15, 2025, defendant Integrated Lender Services Inc. (“ILS”) recorded a new notice of default against the Bodnar Property; Bodnar claims that he never receive the notice as required under Civil Code § 2924b(b)(1). (Bodnar Decl. ¶ 23 & RJN Ex. 7.) On March 27, 2026, ILS recorded a Notice of Trustee’s Sale, which was scheduled to occur on April 29, 2026, stating that the unpaid balance and charges amounted to \$1,622,776.62. (Bodnar Decl. ¶ 24; RJN, Ex. 8.)

On June 11, 2026, plaintiffs filed this action against Golden Pocket, ILS, GHWL LLC, Gilmer, Harrison, Aguilar, and Clark, alleging the following causes of action: (1) declaratory relief; (2) reformation; (3) cancellation of instruments; (4) quiet title; and (5) fraud.

On June 22, 2026, the Court granted plaintiffs’ ex parte application for a temporary restraining order and order to show cause re: preliminary injunction. The temporary restraining order issued by the Court restrained and enjoined Golden Pocket and Integrated Lender Service Inc. or any of their agents from conducting the Trustee’s Foreclosure Sale of the Bodnar Property.

On June 26, 2026, plaintiffs filed their motion for preliminary injunction. On July 6, 2026, Golden Pocket filed its opposition. On July 9, 2026, plaintiffs filed their reply.

II. DISCUSSION

Plaintiffs seek a preliminary injunction that enjoins Golden Pocket and ILS from foreclosing on the Bodnar Property while the proceedings in this matter are pending. As discussed below, the Court finds that plaintiffs have established the necessary factors to warrant the requested relief.

“[T]he question whether a preliminary injunction should be granted involves two interrelated factors: (1) the likelihood that the plaintiff will prevail on the merits, and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief.” (White v. Davis (2003) 30 Cal.4th 528, 554.)

A. Likelihood of Success on the

Merits

Plaintiffs assert that they are able to establish a likelihood of success on the merits of their claims for fraud, cancellation of instruments, reformation, and quiet title against Golden Pocket and ILS. The Court so finds with respect to plaintiffs' claim for quiet title, which is sufficient to support issuance of the requested preliminary injunction; in the interest of judicial economy, the Court declines to address plaintiffs' likelihood of prevailing on their other claims.

A claim for quiet title results where a party seeks to "establish title against adverse claims to real or personal property or any interest therein." (Code Civ. Proc. § 760.020(a).)

Here, Bodnar is the owner of the Bodnar Property, and defendant Golden Pocket claims an interest in that property in the amount of \$1,622,776.62, which plaintiffs dispute. (Bodnar Decl. ¶¶ 2, 24; RJN, Ex. 8.) Plaintiffs present sufficient evidence to support their contention that any encumbrance against the Bodnar Property, if proper, is limited to \$300,000 per an agreement between the parties when the Deed of Trust was executed and recorded. (Bodnar Decl. ¶¶ 8-9, 12-15 & Exs. C-D, G-L; Fowler Decl. ¶ 15 & Ex. C). The Court is unpersuaded by Golden Pocket's claim that it had rejected the Addendum limiting the security for the loan to \$300,000, as Golden Pocket has failed to produce any documents to meaningfully suggest they repudiated such limitation when it was presented. Golden Pocket's unsigned copy of the Addendum, coupled by a self-serving declaration, is insufficient when weighed against plaintiffs' evidence. (See Huang Decl. ¶¶ 9-12 & Ex. C.) In addition to plaintiff Bodnar's declaration and that of his counsel, plaintiff's evidence notably includes a copy of a title report indicating that Golden Pocket had recorded a lien against the Bodnar Property on June 25, 2028, in the amount of \$349,375. (Fowler Decl. ¶ 15 & Ex. C [Title Report].) All such evidence indicates that Golden Pocket's ability to record a lien against the Bodnar Property was limited as plaintiffs suggest.

Accordingly, the Court finds that plaintiffs have established a likelihood of success on their quiet title claim.

B. Balance of Harms

The Court also finds that the relative balance of harms weighs heavily in favor of plaintiffs, as a foreclosure sale would result in plaintiffs' permanent loss of the Bodnar Property. By contrast, Golden Pocket fails to identify what hardship it would face if the preliminary injunction were issued. ILS has filed no opposition to the request for a preliminary injunction, thereby failing to advance any possible harm it might face if the injunction were issued.

For these reasons, the Court also finds that the required undertaking plaintiffs must post pursuant to CCP 529 for the preliminary injunction shall be set in the nominal amount of \$10,000.

III. CONCLUSION

Based on the foregoing, the Court GRANTS plaintiffs' request for a preliminary injunction as to defendants Golden Pocket Financial, Inc. and Integrated Lender Services, Inc.

The Court will sign the Proposed Order Granting Motion for Preliminary Injunction, received electronically 6/26/26, with the addition of an order for a \$10,000 undertaking per CCP 529 in the event it is later determined that the preliminary injunction was issued in error.